

MEMORANDUM OF
UNDERSTANDING BETWEEN
LARAMIE COUNTY SCHOOL DISTRICT NUMBER ONE AND THE
CITY OF CHEYENNE

1. **Parties.** This Memorandum of Understanding ("MOU") is made and entered into by and between Laramie County School District Number One ("District"), whose address is 2810 House Avenue, Cheyenne, Wyoming 82001, and the City of Cheyenne, a municipality organized and existing under the laws of the State of Wyoming, acting through its Recreation Division ("City"), whose address is 1317 Parsley Blvd, Cheyenne, Wyoming 82001.

2. **Purpose.** The purpose of this MOU is to provide transportation service for the Cheyenne Parks and Recreation "REC Camp Program" by leasing school buses from the Laramie County School District Number One.

3. **Term of MOU.** This MOU shall, when approved and executed by the parties hereto, remain in full force and effect from June 6, 2022, through August 12, 2022. The payment and indemnification provisions of this MOU shall survive the termination hereof.

4. **Payment.** Upon receipt of an itemized invoice from the District and on or before September 30, 2022, the City agrees to pay the District for the costs of transportation for the duration of this MOU. Such costs shall include, but not necessarily be limited to maintenance and depreciation, drivers' salary and benefits, fuel, and disinfection supplies as required by District COVID-19 protocols. Billing will include the following:

A. \$2.27/mile to cover maintenance, depreciation, and administrative costs.

B. Driver salary and benefits will be actual costs. The City will be responsible for hourly wages and benefits for the drivers' personal break time, as long as said break times do not exceed legal limits.

C. Fuel cost will be the average price for the month of fuel sold to the District Transportation Department.

D. \$.50 per gallon of Wex-cide disinfectant (includes cleaning rags and containers), if required.

5. **Responsibilities of District.** The District shall furnish a maximum of four buses with a minimum capacity of 72 passengers and a maximum of four drivers to operate the buses. In case of emergency, bus drivers shall remain with the buses at all times.

6. **Qualification of Drivers.** For the term of this MOU, the District shall ensure the buses under this MOU are driven by qualified District personnel who possess valid commercial driver's licenses for the type of vehicle operated and have passed a Wyoming Division of Criminal Investigation background verification.

7. **Special Provisions.**

A. The City shall add the designated buses to the City's existing automobile insurance policies and will cover the buses for liability and property damage. It is expressly agreed and understood that the City's insurance policy is primary, not contributory. The City shall name the District as an additional insured/loss payee on the City's automobile insurance policy and furnish the District with a certificate of insurance evidencing such coverage.

B. It is expressly agreed and understood that the City will fully release, indemnify, and hold harmless the District and its officers, agents, employees, successors and assigns from any and all causes of action, claims, liabilities, demands, or expenses arising out of the use of the District school buses under this MOU.

C. It is expressly agreed and understood that the City will be responsible for the conduct of students being transported to City programs and will assume disciplinary responsibility in the event of misconduct.

D. It is expressly agreed upon and understood that, should they be in place, District, county, state, and CDC measures and/or restrictions related to the COVID-19 pandemic will be followed by all drivers designated by the District to operate District buses under the terms of this MOU. Said measures and restrictions may include, but are not limited to, wearing personal protective equipment (PPE), restricting passenger numbers, social distancing, frequent disinfection of equipment, and in-state/out-of-state. The City will develop and furnish to the District, a transportation plan that is aligned and in compliance with the District reopening plan and the Wyoming Department of Education's Smart Start plan.

8. **General Provisions.**

A. **Amendments.** Any party may request changes in this MOU. Any changes, modifications, revisions, or amendments to this MOU which are mutually agreed upon by and between parties to this MOU shall be incorporated by written instrument, executed, and signed by all parties to this MOU.

B. **Applicable Law.** The construction, interpretation and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out this MOU and over the parties, and the venue shall be the First Judicial District Court, Laramie County, Wyoming.

C. Assignments. This MOU shall be binding upon and inure to the benefit of the parties hereto and their respective heirs, successors, transferees, and permitted assignees. No party shall have the right to assign any rights or obligations under this MOU without the express written consent of both parties.

D. Entirety of Agreement. This MOU, consisting of five (5) pages, represents the entire and integrated agreement between the parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

E. Force Majeure. No party shall be liable to perform under the MOU if such failure arises out of causes beyond control and without the fault or negligence of said party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather.

F. Notices. All notices arising out of or from the provisions of this MOU shall be in writing and given to the parties either by regular mail or delivery in person at the addresses indicated above.

G. Sovereign/Governmental Immunity. Laramie County School District Number One and the City do not waive governmental immunity by entering into this MOU, and each fully retains all immunities and defenses provided by law with respect to any action based on or occurring as a result of this MOU.

H. Third Party Beneficiary Rights. The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this MOU shall not be construed so as to create such status. The rights, duties and obligations contained in this MOU shall operate only between the parties to this MOU and shall inure solely to the benefit of the parties to this MOU. The provisions of this MOU are intended only to assist the parties in determining and performing their obligations under this MOU. The parties to this MOU intend and expressly agree that only parties signatory to this MOU shall have any legal or equitable right to seek to enforce this MOU, to seek any remedy arising out of a party's performance or failure to perform any term or condition of this MOU, or to bring an action for the breach of this MOU.

9. Signatures. In witness whereof, the parties to this MOU through their duly authorized representatives have executed this MOU on the days and dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this MOU set forth herein.

LARAMIE COUNTY SCHOOL DISTRICT NUMBER ONE

Rose Ann Million Rinne, Chair, Board of Trustees

Date

CITY OF CHEYENNE

Patrick Collins, Mayor

Date

(SEAL)

Attest:

Kristina F. Jones, City Clerk